

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MALIK FAREED SHAKIR LOUDERMILK,

Petitioner

VS.

MALAYSIA BIVENS,

Respondent

) Case Number: FPT-26-378888

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Malik Loudermilk (Father) and Respondent, Malaysia Bivens (Mother). They share one minor child: Messiah Loudermilk (DOB: 08/10/21).
- 2) On April 15, 2026, Father filed a Request for Order seeking initial orders regarding child custody, and visitation. In particular, Father is requesting sole legal and sole physical custody with no visitation to Mother.
- 3) On May 18, 2026, the Court continued the matter to June 29, 2026 for Petitioner to effectuate service.
- 4) On June 23, 2026, Petitioner filed a proof of personal service indicating Respondent was personally served on June 3, 2026.
- 5) On June 29, 2026, the parties appeared at Readiness hearing and the Court referred the matter to FCS Mediation to occur on August 4, 2026 and set a return hearing on August 25, 2026. The parties allegedly reached a partial agreement. However, as of this Court's review, the partial agreement has not been filed.

6) Mother has not filed an opposition to Father's requests.

B. Findings and Order

- 1) **The parties are ordered to appear.** As of August 15, 2026, the Court did not receive an update or supplemental declaration from either party as to the status of the Family Code section 3111 evaluation. Without any input from the parties, the Court has no basis on which to provide a Tentative Ruling on this issue. The parties are ordered to appear and shall be prepared to inform the Court as to the status of the evaluation and provide the Court with argument as to what, if any, further orders are requested.
- 2) The parties shall share joint legal and joint physical custody of the minor child.
- 3) The parties shall exercise parenting time with the minor child on an equal basis. The child shall be in each parent's care on a two days on/two days off schedule. Exchanges shall occur at 6:00 p.m. The receiving parent is responsible for picking up the minor child at the start of his/her parenting time. The rotation shall commence August 25, 2026, with Father having care and custody of the minor child from Tuesday, August 25, 2026, at 6:00 p.m. Mother's parenting time shall then commence on Thursday, August 27, 2026, at 6:00 p.m. The parties' parenting time shall rotate every 48 hours thereafter.
- 4) The parties are permitted to modify the parenting schedule by mutual written agreement.
- 5) The Court will prepare the Findings and Order After Hearing.